

Moreover, use of Proof of Service of Summons, Judicial Council form POS-010 is mandatory. (Cal. Rules of Court, rule 1.31(a)-(b); Gov't Code, § 68511.) Filing only part of the form does not comply with the California Rules of Court. It is further noted that "[f]orms adopted by the Judicial Council for mandatory use[, such as the Proof of Service of Summons] bear the words 'Form Adopted for Mandatory Use,' 'Mandatory Form,' 'Form Adopted for Alternative Mandatory Use,' or 'Alternative Mandatory Form' in the lower left corner of the first page." (*Id.* at rule 1.31(c).) The document filed on June 29, 2026, does not bear these words.

Therefore, the proof of service filed on June 29, 2026 fails to comply with the minimum statutory requirements, and there is no presumption of proper service.

The court notes that plaintiff has filed and electronically served an extremely untimely opposition merely three court days prior to the hearing, leaving the moving party with no opportunity to reply. (Code Civ. Proc., § 1005, subd. (b) [papers opposing the motion must be filed no later than nine court days prior to the hearing].) **While the court may exercise its discretion to disregard the late-filed opposition and intends to do so in any future late filings in this proceeding, the court will consider the opposition papers in this instance only.**

Plaintiff indicates that defendant was personally served with the summons and first amended complaint, and argues that the service was proper, because the service was carried out through the San Francisco Sheriff's Office, Civil Division. Plaintiff's contentions are supported only by his own self-serving declaration and the same defective proof of service that was filed with the court on June 29, 2026. Notably, the proof of service plaintiff relies upon contradicts his allegation that the documents were *personally served*, since the document indicates that the defendant was served by *substituted service*. (Pacheco Decl., Ex. A at ¶ 5b.) Further, plaintiff does not confirm whether the amended summons was served as opposed to the summons to the original complaint. Nor does plaintiff identify the actual person who purportedly effected the service. Therefore, plaintiff has not met his burden to prove that the service was valid.

Thus, the motion to quash the service of summons is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-30-26.
(Judge's initials) (Date)

(29)

Tentative Ruling

Re: **Crawford, Jr. v. Gaona**
Superior Court Case No. 20CECG01562

Hearing Date: September 1, 2026 (Dept. 502)

Motion: Motion for Relief from Dismissal

If oral argument is timely requested, it will be entertained on Thursday, September 3, 2026, at 3:30 p.m. in Department 502.

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-31-26
(Judge's initials) (Date)